

Yogesh Kumar v. State of U.P.

Allahabad High Court · Division Bench · 20 September 2016 · WRIT - C No. 45100 of 2016 · **Writ disposed; petitioner relegated to Clause 6.5.**

HEADNOTE

Without examining the correctness of the electricity bill, the Court disposed of the writ, holding that Clause 6.5 of the U.P. Electricity Supply Code, 2005 provides a complete machinery for billing grievances and leaving the consumer to pursue that statutory remedy.

FACTUAL SUMMARY

Yogesh Kumar filed a writ petition in the Allahabad High Court questioning an electricity bill raised against him by the respondent licensee and seeking disposal of his representation dated 15 June 2016, which challenged the correctness of that bill. The Division Bench heard counsel for the petitioner, the State, and the licensee. Licensee counsel submitted that the Supply Code supplied a complete grievance machinery for such billing objections. The Court did not inquire into the bill itself.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::6.5

billing-dispute-redressal

HOLDING

Clause 6.5 of the U.P. Electricity Supply Code, 2005 lays down a complete machinery for redressal of grievances questioning the correctness of an electricity bill. A writ seeking disposal of a representation against such a bill is disposed of without examining merits, leaving the consumer to institute appropriate proceedings under Clause 6.5. ¶ 3-4

PRINCIPLE TAGS

billing-objection-to-executive-engineer-under-6.5 Without examining the correctness of the electricity bill, the Court disposed of the writ, holding that Clause 6.5 of the U.P. Electricity Supply Code, 2005 provides a complete machinery for billing grievances and leaving the consumer to pursue that statutory remedy. ¶ 3-4

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — CORRECTNESS OF THE ELECTRICITY BILL AND THE PETITIONER'S OBJECTIONS TO IT
The Court expressly declined to go into the merits of the objections. ¶ 4